

CONSENT TO LIEN AND EFFECT OF RAILROAD TRACK CONSTRUCTION AND FINANCING

This **CONSENT TO LIEN AND EFFECT OF RAILROAD TRACK CONSTRUCTION AND FINANCING** (this "Assignment") is made as of the ____ day of _____, 2014, by the **SWAN RANCH LLC, a Wyoming limited liability company** ("Swan"), and **CLEAR CREEK LAND COMPANY LLC, a Wyoming limited liability company** ("Clear Creek"; collectively, the "Developers").

- A. Pursuant to a Rail Road Right of Way Easement made as of even date herewith and recorded on May ____, 2014, in Book ____ at Page ____ among the Real Estate Records of the County Clerk for Laramie County, Wyoming (the "Rail Easement Agreement"), the Developers granted to City of Cheyenne, a Wyoming municipal corporation (the "City"), a 10-year easement (the "Rail Easement") for a rail road line and corridor within the lands described therein.
- B. The City has agreed to loan to Granite Peak Development Limited Partnership, a Wyoming limited partnership formerly known as Granite Peak Development, LLC, a Wyoming limited liability company ("Granite"), the maximum principal sum of \$3,000,000 (the "Granite Loan").
- C. The City, Cheyenne-Laramie County Corporation for Economic Development (Cheyenne Leads), a Wyoming non-profit corporation and statutorily-authorized community development organization, and Granite have entered into an Amended and Restated Project Development and Administration Agreement dated May 2, 2014 (the "Development Agreement"), to construct railways, spurs, and switching and related facilities to serve the Swan Ranch Rail Park (the "Park") in Cheyenne, Wyoming (the "Project").
- D. As provided in the Development Agreement and an Assignment of Ownership of Rail, Ties, and all Related Rail Equipment dated May ____, 2014, made by Granite in favor of the City, Granite will construct and complete the Project.
- E. During construction and afterward during the pendency of the Granite Loan, the City will own the Project improvements installed.
- F. The City has entered into a Track Lease Agreement for Rail Facilities Within Swan Ranch Rail Park, Cheyenne, Wyoming (the "Track Lease"), with CLH, LLC, a Wyoming limited liability company ("CLH"), and Granite, under which CLH will lease the City's rail facilities within the Park to serve various business enterprises now or to be located within the Park.
- G. The Developers have executed a Mortgage (the "Mortgage") dated May ____, 2014, in favor of the City to secure, in part, the Granite Loan, which Mortgage was recorded on May ____, 2014, in Book ____ at Page ____ among the Real Estate Records of the County Clerk for Laramie County, Wyoming.
- H. The City has applied for, and been approved by the Wyoming Business Council (the "Council"), a body corporate organized under the laws of the State of Wyoming and operating as a state instrumentality operated solely for the public benefit, for, a Wyoming Business Ready Community-Business Committed Loan in the maximum principal sum of Three Million Dollars (\$3,000,000) (the "Loan").

- I. To secure the City's obligations under the Loan, it has made the following instruments (the "City Collateral") in favor of the Council:
- 1) a Collateral Assignment of Note and Mortgage, wherein the City has assigned all of its interest in and to the Granite Note and the Mortgage to the Council;
 - 2) a Collateral Assignment of Railroad Easement and Track Lease, wherein the City has assigned all of its interest in and to the Rail Easement Agreement and the Track Lease Agreement to the Council; and
 - 3) a Business Ready Community – Business Committed Loan and Security Agreement (the "Loan Agreement"), wherein the City has granted in favor of the Council a security interest in and to the Project improvements; and
 - 4) Financing Statements to be recorded among the Real Estate Records of the County Clerk for Laramie County, Wyoming, and among the UCC Records of the Wyoming Secretary of State.

NOW, THEREFORE, for good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Developers hereby consent to the lien, operation and effect of the Project and of all of the documents described above. The Developers shall have no liability under such documents, other than their obligations, if any, under the Rail Easement Agreement and the Mortgage. In particular this Consent is made to evidence their consent to the Project and (i) to the "clouding" of their land title caused by the Project and the Granite and the City's financing arrangements; (ii) to the effects on their abstract or title arising from the same, including the liens created under the document described above; and (iii) to parties other than the City having rights and interests in the lands described in the Mortgage and/or the Rail Easement Agreement.

IN WITNESS WHEREOF, the Developers have caused this Consent to be executed by their duly authorized agents as of the effective dates of the Mortgage and the Rail Easement Agreement, respectively.

SWAN RANCH LLC

CLEAR CREEK LAND COMPANY LLC

By: _____
Susan Samuelson,
Managing Member

By: _____
Susan Samuelson,
Managing Member

Approved as to Form Only:

Assistant Attorney General

STATE OF WYOMING
COUNTY OF LARAMIE

This instrument was acknowledged before me on this ____ day of May, 2014, by **SUSAN SAMUELSON, as Managing Member of SWAN RANCH, LLC, and as Managing Member of CLEAR CREEK LAND COMPANY LLC.**

Notary Public
My Commission Expires: _____

WBC FINAL DRAFT 5-15-14